

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-21

MSRF Inc. v. YANG MING TRANSPORT CORPORATION

COMPLAINANT’S SUPPLEMENTAL MOTION FOR CONFIDENTIAL TREATMENT
OF CERTAIN DOCUMENTS IN REPLY BRIEF AND SUPPLEMENTAL
COMPLAINANT’S APPENDIX

Pursuant to the Order of the Presiding Officer of May 30, 2023, the Initial Order of August 22, 2022, the rules of the Federal Maritime Commission at 46 C.F.R. 502.14(j)(1) and 502.5(a)(2)(ii), Complainant MSRF, Inc. (“MSRF” or “Complainant”) respectfully requests for good cause that certain information in its Confidential Reply Brief, Complainant’s Reply to Respondents Proposed Findings of Facts, and Supplemental Complainant’s Appendix be kept confidential by the Commission and not released to the public.

The requests for confidential treatment include material previously designated as confidential by the parties and additional material included in Complainant’s Reply Brief and Supplemental Complainant’s Appendix. This material has not been previously disclosed.

Good cause for confidential treatment of the identified documents is based on the fact the information for which confidential treatment is sought is commercially sensitive and the disclosure of which may cause the parties commercial harm. This information also includes the terms of the confidentially filed Service Contract. The Shipping Act and the Commission’s rules provide for such confidentiality. 46 U.S.C. 40502(b)(1); 46 C.F.R. 530.4.

Counsel for Complainant has conferred with Counsel for Yang Ming Marine Transport Corporation (“Yang Ming” or “Respondent”) with respect to the material for which it requests confidential treatment. Counsel for Respondent has informed us that they have no comments on the proposed confidential table.

Dated: July 3, 2023

Respectfully submitted,

CLARK HILL PLC

/s/ R. Kevin Williams

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CONFIDENTIAL TABLE

Bates Range or Page Numbers	Description	Confidential Treatment Requested for	Basis for Request
Supplemental Complainant's Appendix			
SCX_001-006	MQC Related Information	Marked Material	Commercially sensitive information
Complainant's Reply Brief			
Pages 6-7	Service Contract Article	Bracketed Material	Commercially sensitive terms; filed confidentially with FMC and subject to statutory protection
Pages 8-9	Emails Between MSRF and Yang Ming	Bracketed Material	Commercially sensitive information
Complainant's Reply to Respondent's Proposed Findings of Fact			
Page 7	RPFF26	Bracketed Material	Confidential and commercially sensitive service contract terms
Pages 8-9	RPFF28	Bracketed Material	Confidential and commercially sensitive service contract terms

CERTIFICATE OF SERVICE

I certify that on July 3, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of August 22, 2022.

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